THE STATE

Versus

REMEMBER CHIGAVAZIRA

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 17 OCTOBER 2025

Criminal Review

NDUNA J: - The accused appeared before the court of a Provincial Magistrate facing one count preferred as contravening *Section 89(1)(a) of the Postal and Telecommunications Act [Chapter 12:05] 'Wilful damage to or interference with telecommunication line*'. The charge sheet goes on to allege the following: -

> *In that on the 16th day of July 2025 and at Marula Close Beitbridge, Remember Chigavazira unlawfully and wilfully destroyed, injured or removed telecommunication line belonging to or by telecommunication licensee or by cutting Telone Drop wire weighing 1.136 kg belonging to or used by Telone Zimbabwe in contravention of the said Act*

The accused pleaded not guilty to the charge and a trial in which witnesses were led was conducted. Unfortunately, the accused was convicted. The trial court adjourned to consider the case for the sentence.

It turned out to be that the provision citing the charge was a nullity as it does not create the offence charged. For completeness sake, the provision is as follows: -

> *89 Wilful damage to or interference with or theft of telecommunication lines and apparatus*
>
> *(1) In this section and sections 89B and 89C—*
>
> *"telecommunication infrastructure material" means any material component essential for the maintenance of a telecommunication infrastructure, and includes (but is not limited to)—*
>
> *(a) a telecommunication line, telephone cable or wire conductor used or commonly used by a telecommunication licensee; or*

Further to this, the court had proceeded to sentence the accused without inviting him to address it on whether or not there are any special circumstances warranting the court not to impose the minimum sentence provided for in the Act. It was noted that the body of the charge preferred against the accused demands that in the absence of special circumstances, a mandatory minimum sentence was supposed to be imposed. The sentence provided by the statute for the offence is as follows: -

> (b) without lawful cause, the proof whereof shall lie on him or her, destroys, injures or removes any telecommunication line belonging to or used by a telecommunication licensee; or
>
> (c)
>
> (i); ……. or
>
> (ii)….;
>
> shall be guilty of an offence, and if there are no special circumstances peculiar to the case as provided for in subsection (10), be liable to imprisonment for a period of not less than ten years.
>
> And *subsection (10)* provides as follows: -
>
> *(10) If a person convicted in terms of subsection (4) or (5) satisfies the court that there are special circumstances in the particular case, which circumstances shall be recorded by the court, why the penalty provided under subsection (4) or (5) should not be imposed, the convicted person shall be liable to a fine up to or exceeding level fourteen or imprisonment for a period not exceeding five years or both.*

Therefore, what it means is that if the accused person manages to show that there are special circumstances in his case, which demands that the court imposes any other sentence other than that provided for, it shall impose any sentence which is up to level 14 fine or imprisonment of up to 5 years' imprisonment.

There are therefore three limitations in the manner the trial court handled this matter. Firstly, the court erred as it did not advise the accused the existence of the mandatory sentence and the requirement of him addressing it on the question of special circumstances; secondly, the court does not have jurisdiction to impose the sentence called for, for the offence, and thirdly, the offence is miscited.

I will address the mis citation of the charge first. At the commencement of the trial, an accused is invited to plead to the charge. The charge is read out and the accused answers it by tendering his plea to the charge. What an accused answer to is the body of the charge which is read to him. In this case the accused understood the charge and

tendered a plea of not guilty. In this case the accused answered to the charge and gave his defence outline. A look at the defence outline given clears shows that the accused understood the charge. Had this been the only error, I would not have acted in the manner I shall act. There is no prejudice which the accused suffered, although it is a requirement that that the state prefers a correctly cited charge to the accused.

The real issue goes to the manner the trial was held. It was held with the accused not being aware that he had the prospects of being sentenced to 10 years imprisonment. That was anomalous.

When a court is dealing with an unrepresented accused, the court is called upon to do so with great care. Such care would not have been availed to the accused if a court proceeds to deal with his trial without explaining the need to establish special circumstances. It would be a gross irregularity. So, the record must show that special circumstances were canvassed. Failure to record special circumstances amounts to a misdirection rendering the sentencing of the accused incompetent. *See S* v *Mbewe & Another 1998 (1) ZLR 7 and Attorney-General* v *Jasi and Nharingo S-2-87.* Therefore, clearly it was a misdirection for the court to have proceeded with the matter without having advised the accused of special circumstances. Accused may have addressed his mind to the area and may have brought out to the fore the special circumstances. The Supreme Court has emphasised the need to fully explain the question of special circumstances to the accused before he is convicted in *S* v *Dube & Anor 1988 (2) ZLR 385 (SC).*

As was noted by the trial court, it has no jurisdiction to impose a proper sentence in the event of not finding special circumstances in the case. The Act in question does not provide for special jurisdiction.

The matter cannot therefore be allowed to stand. The proceedings must be quashed and a trial de-novo be ordered.

Accordingly, it is ordered that;

1. The proceedings are accordingly quashed and set aside
2. And a trial afresh is ordered.

NDUNA J: ……

DUBE J : …… I agree